

Opinion of the Court

almost 40 years, we have consistently rebuffed requests to add to the claims allowed under *Bivens*. See 582 U. S., at 146; *Minneci v. Pollard*, 565 U. S. 118 (2012); *Wilkie v. Robbins*, 551 U. S. 537 (2007); *Correctional Services Corp. v. Malesko*, 534 U. S. 61 (2001); *FDIC v. Meyer*, 510 U. S. 471 (1994); *Schweiker v. Chilicky*, 487 U. S. 412 (1988); *United States v. Stanley*, 483 U. S. 669 (1987); *Chappell v. Wallace*, 462 U. S. 296 (1983); *Bush v. Lucas*, 462 U. S. 367 (1983).

When asked to extend *Bivens*, we engage in a two-step inquiry. We first inquire whether the request involves a claim that arises in a “new context” or involves a “new category of defendants.” *Malesko*, 534 U. S., at 68. And our understanding of a “new context” is broad. We regard a context as “new” if it is “different in a meaningful way from previous *Bivens* cases decided by this Court.” *Abbasi*, 582 U. S., at 139.

When we find that a claim arises in a new context, we proceed to the second step and ask whether there are any ““special factors [that] counse[l] hesitation”” about granting the extension. *Id.*, at 136 (quoting *Carlson*, 446 U. S., at 18, in turn quoting *Bivens*, 403 U. S., at 396). If there are—that is, if we have reason to pause before applying *Bivens* in a new context or to a new class of defendants—we reject the request.

We have not attempted to “create an exhaustive list” of factors that may provide a reason not to extend *Bivens*, but we have explained that “central to [this] analysis” are “separation-of-powers principles.” *Abbasi*, 582 U. S., at 135. We thus consider the risk of interfering with the authority of the other branches, and we ask whether “there are sound reasons to think Congress might doubt the efficacy or necessity of a damages remedy,” *id.*, at 137, and “whether the Judiciary is well suited, absent congressional action or instruction, to consider and weigh the costs and benefits of allowing a damages action to proceed,” *id.*, at 136.